EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

DECISION

Application no. 43472/06
Vladimir Anatolyevich PANARIN
against Russia

The European Court of Human Rights (Third Section), sitting on 11 February 2020 as a Committee composed of:

Paulo Pinto de Albuquerque, *President,*
Helen Keller,
María Elósegui, *judges,*
and Stephen Phillips, *Section Registrar,*

Having regard to the above application lodged on 28 August 2006,

Having regard to the observations submitted by the respondent Government and the observations in reply submitted by the applicant,

Having deliberated, decides as follows:

THE FACTS

1. The applicant, Mr Vladimir Anatolyevich Panarin, is a Russian national, who was born in 1955 and lives in Zlatoust, the Chelyabinsk Region, South Urals.

2. The Russian Government ("the Government") were represented initially by Mr G. Matyushkin, the Representative of the Russian Federation to the European Court of Human Rights, and then by his successor in that office, Mr Galperin.

A. The circumstances of the case

3. The facts of the case, as submitted by the parties, may be summarised as follows.

4. In 2006 the applicant applied to the regional branch of the Ministry of Justice to have registered the Russian Ethnic-Cultural Autonomy of the Town of Zlatoust under the 1996 Law on Ethnic-Cultural Autonomy. He himself wanted to be the chairperson of that organisation.

5. On 1 February 2006 the Ministry refused the request. In its reply it stated, in particular, that the law in question was intended to help ethnic minorities to maintain their cultural identity. Russians were not an ethnic minority either in Zlatoust or in the Chelyabinsk region. On the contrary, they represented, according to the latest all-Russia census, the overwhelming majority of the population in that region.

6. The applicant appealed against the refusal to a court.

7. On 25 April 2006 the Sovetskiy District Court of Chelyabinsk upheld the refusal. It found that the articles of association in question did not comply with the applicable domestic laws. In particular, they provided for the Russian Ethnic-Cultural Autonomy of the Town of Zlatoust, whereas such a form of association was only available to ethnic minorities, the Russians not being one. The applicant appealed.

8. On 23 June 2006 the Chelyabinsk Regional Court upheld the decision of the first-instance court.

9. The applicant complained to the Constitutional Court challenging the constitutionality of the Law on Ethnic-Cultural Autonomy.

10. On 18 July 2006 the Constitutional Court refused to examine the applicant's complaint on the ground that the issue had already been examined in its ruling of 3 March 2004, where it had found that the provisions of the Law on Ethnic-Cultural Autonomy were consistent with the Russian Constitution, including the principle of non-discrimination.

B. Relevant domestic law

1. The Constitution of the Russian Federation

11. The relevant Articles of the Constitution read as follows:

Article 30 § 1

"Everyone shall have the right to association, including the right to create trade unions for the protection of his or her interests. The freedom of activity of public association shall be guaranteed."

Article 55 § 3

"The rights and freedoms of man and citizen may be limited by the federal law only to such an extent to which it is necessary for the protection of the fundamental principles of the constitutional system, morality, health, the rights and lawful interests of other people, for ensuring defence of the country and security of the State."

2. Federal Law on Public Associations, no. 82-FZ of 19 May 1995

12. The relevant Sections of the Law read as follows:

Section 3. Content of the citizens' right to association

"The citizens' right to association involves the right to create on voluntary basis public associations for the protection of their common interests and attaining their

common goals, the right to join the existing public associations or abstain from joining them, as well as the right to freely withdraw from public associations.

The creation of public associations fosters the implementation of the rights and legitimate interests of the citizens.

The citizens have the right to create public associations of their choice without prior authorization by the State bodies and local authorities, as well as to join such public associations on condition of compliance with their articles of association."

Section 16. Restrictions on creation of public associations and their activity

"The creation and activity of public associations whose goals and actions are directed to carrying out extremist activities shall be prohibited.

...

The restrictions on creation of certain types of public associations may be established only by federal laws."

Section 21. State registration of public associations

"For acquiring the rights of a legal person a public association shall be subject to State registration in accordance with federal law of 8 August 2011 No. 129-FZ on state registration of legal persons and individual entrepreneurs.

The decision on state registration (refusal of state registration) of a public association is taken by the [competent federal executive body], or its territorial body. ... "

Section 23. Refusal to register a public association

"The state registration of a public association shall be refused on the following grounds:

1) if the articles of a public association contradict the Constitution of the Russian Federation and the legislation of the Russian Federation; ...

The refusal of state registration of a public association ... may be appealed against to ... a court. ... "

3. Federal Law on Ethnic-Cultural Autonomy, no. 74-FZ of 17 June 1996

13. The relevant Section of the Law reads as follows:

Section 1. Definition of ethnic-cultural autonomy

"Ethnic-cultural autonomy in the Russian Federation is a form of ethnic-cultural self-determination, which has the form of an association of the citizens of the Russian Federation identifying themselves as part of a certain ethnic group constituting a national minority on the territory concerned, on the basis of their voluntary self-organization for the purposes of independent resolution of the issues of preserving their identity, development of their language, education and national culture.

Ethnic-cultural autonomy is a variety of a public association. The legal form of organization of an ethnic-cultural autonomy is a public association."

COMPLAINTS

14. The applicant complained under Articles 11 and 14 of the Convention that the refusal of the Ministry of Justice to register the Russian Ethnic-Cultural Autonomy of the Town of Zlatoust had breached his right to freedom of association and was discriminatory in nature.

THE LAW

15. Articles 11 and 14 of the Convention read as follows:

Article 11

"1. Everyone has the right to freedom of peaceful assembly and to freedom of association with others, including the right to form and to join trade unions for the protection of his interests.

2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic association in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others. This Article shall not prevent the imposition of lawful restrictions on the exercise of these rights by members of the armed forces, of the police or of the administration of the State."

Article 14

"The enjoyment of the rights and freedoms set forth in [the] Convention shall be secured without discrimination on any ground such as sex, race, colour, language, religion, political or other opinion, national or social origin, association with an ethnic minority, property, birth or other status."

A. The parties' submissions

16. The Government argued that the interference had been in accordance with the Law on Public Associations and the Law on Ethnic-Cultural Autonomy, whose provisions were sufficiently precise and foreseeable. They submitted that the legislation envisaged the form of Ethnic-Cultural Autonomy specifically for ethnic minorities, which did not apply to the Russians who were the ethnic majority. At the same time, the Law on Public Associations provided for other forms of association which remained open to the applicant.

17. The applicant maintained that the refusal to register Russian Ethnic-Cultural Autonomy of the Town of Zlatoust had been in breach of his Convention rights.

B. The Court's assessment

18. The Court reiterates that the right enshrined in Article 11 includes the right to form an association in order to act collectively in a field of mutual interest (see *Gorzelik and Others v. Poland* [GC], no. 44158/98, §§ 88-93, ECHR 2004‑I, and *Sidiropoulos and Others v. Greece*, 10 July 1998, § 40, *Reports of Judgments and Decisions* 1998‑IV). It observes, at the same time, that Article 11 does not guarantee the right to form a particular type of association.

19. The Court notes that the domestic authorities refused to register the Russian Ethnic-Cultural Autonomy of the Town of Zlatoust on the ground that the domestic law only provided ethnic minorities with a right to form an ethnic-cultural autonomy, while Russians constituted an ethnic majority in the region. Insofar as the applicant criticises the interpretation of the domestic law in the domestic proceedings, the Court reiterates that it is primarily for the national authorities, notably the courts, to resolve problems of interpretation of national legislation (see *Perez v. France* [GC], no. 47287/99, § 82, ECHR 2004-I). In the present case the domestic courts carried out their own assessment of the applicable laws, provided a consistent interpretation of the relevant domestic law provisions as well as arguments in support of their approach to the application thereof in the applicant's case.

20. The Court further observes that under the domestic law it is open to the applicant to form other types of association. The applicant did not provide the Court with any evidence that he had applied to form an association of a different type, nor did he provide any argument as to why another form would be inadequate for his purposes.

21. It follows that this part of the application must be dismissed as being manifestly ill-founded, pursuant to Article 35 §§ 3 and 4 of the Convention.

22. It is the Court's established case-law that in order for an issue to arise under Article 14 there must be a difference in the treatment of persons in relevantly similar situations. Having regard to its findings above, the Court considers that the applicant failed to provide any evidence of discrimination within the meaning of Article 14.

23. It follows that this part of the application must likewise be dismissed as being manifestly ill-founded, pursuant to Article 35 §§ 3 and 4 of the Convention.

For these reasons, the Court, unanimously,

Declares the application inadmissible.

Done in English and notified in writing on 12 March 2020.

Stephen Phillips
Registrar

Paulo Pinto de Albuquerque
President